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Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

Subhi Abdelhalim;
CSAA Insurance Exchange;
PHILLIPS, SPALLAS & ANGSTADT LLP;
PRIYA D. NAVARATNASINGHAM;
ALBERTO REYNA;
MICHAEL R. CHAMBERS;
CARBONE, SMITH & KOYAMA;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631801

**PLAINTIFF'S MEMORANDUM OF
POINTS AND AUTHORITIES IN
OPPOSITION TO DEFENDANTS'
DEMURRER**

Date:
Time:
Dept.:
Judge:
Reservation No.:

May 12, 2026
9:00 a.m.
301

TABLE OF CONTENTS

	Page
Table of Authorities	34
I. INTRODUCTION	5
I.A. THE “SMOKING-GUN” PREAMBLE (RELIANCE, CHAIN, LAWS MATRIX)	ZZZD80101toc022
I.F. POSTURE NOTE: THE DEMURRER TARGETS A PLEADING PLAINTIFF HAS MOVED TO SUPERSEDE	5A
II. STATEMENT OF FACTS	9
III. STANDARD BLEED: DEFENDANTS IMPORT MERITS STANDARDS INTO DEMURRER ANALYSIS	10
IV. THE JURISDICTIONAL MASQUERADE: AN INDEPENDENT EQUITABLE ACTION IS NOT AN APPEAL	11
IV-A. INDEPENDENT EQUITABLE ACTION RECOGNIZED IN CALIFORNIA	12
IV-B. THIS FAC SEEKS RELIEF FROM PROCUREMENT OF JUDGMENT, NOT REVIEW OF TRIAL ERROR	13
IV-C. WHAT ISSUES WERE NOT ADJUDICATED IN THE UNDERLYING TRIAL	13
V. COLLATERAL ATTACK WITHOUT CROWLEY: DEFENDANTS SKIP THE PRIMARY RIGHTS ANALYSIS	14

	Page
VI. EXTRINSIC FRAUD: THE INTRINSIC/EXTRINSIC DISTINCTION IS FACT-INTENSIVE	16
VII. CIVIL CODE SECTION 47(b) IS NOT A FACIAL DEMURRER BAR FOR NONCOMMUNICATIVE CONDUCT	22
VIII. THE UNCERTAINTY DEMURRER IS DISFAVORED AND UNSUPPORTED	23
IX. PLEADING SUFFICIENCY: THE FAC SATISFIES SERRANO	24
X. LIMITATIONS AND SECTION 473: A CATEGORY ERROR	24
XI. STANDING AND MISJOINDER: AGENCY PRINCIPLES APPLY	25
XII. DEFENDANTS' RFJN OVERREACHES THE DEMURRER RECORD	28
XIII. LEAVE TO AMEND SHOULD BE GRANTED IF ANY CAUSE OF ACTION FAILS	29
XIII-A. THE PROPOSED SAC CURES EACH DEFICIENCY DEFENDANTS ALLEGE	29A
XIV. CONCLUSION	31
XV. RELIEF REQUESTED	32
XVI. WHY LEAVE TO AMEND CURES ANY DEFICIENCY	32

	Page
APPENDIX A: SERRANO VIOLATIONS INVENTORY	33

I. INTRODUCTION

§I.A — The “Smoking-Gun” Preamble (Reliance, Nine-Point Chain, and Laws-Broken Matrix)

I. THE “SMOKING-GUN” PREAMBLE — WHAT THIS OPPOSITION IS ABOUT

This Opposition is grounded in the certified record of a fraud perpetrated upon this Court. At the heart of this case is a sequence of events where defense counsel, acting as officers of the court, procured a series of structural rulings against Plaintiff by representing that they had never received critical evidence—representations that the record now proves were false.

I.A. THE COURT’S ARTICULATED RELIANCE

On February 28, 2025, the Court explicitly stated the basis for the credibility it had afforded the defense and the subsequent rulings against Plaintiff:

“I’m not going to question a lawyer’s remarks regarding what they have and don’t have. They are an officer of the Court, and they are supposed to conduct themselves appropriately before the Court. If they are not, there are other sanctions that they could suffer here. So far I haven’t heard or seen anything on the part of the current law firm which tells me that they have conducted themselves improperly.” — The Court (Garrett L. Wong), Hr’g Tr. Feb. 28, 2025, pp. 291:26–292:7.

I.B. THE RULINGS PROCURED FROM THAT RELIANCE

Based on this misplaced reliance on defense counsel’s representations of non-receipt, the Court issued the following structural rulings that stripped Plaintiff of his ability to present his case:

- **MIL No. 1 Denied** (Jan. 27, p. 41:3–11)
- **911 CDs Excluded** (Jan. 27, p. 38:22–25)
- **911 Transcripts “Never Admitted”** (Jan. 27, p. 39:18–24)
- **Continuance Denied** (Feb. 18, p. 181)
- **§ 473 Relief Rejected** (Feb. 18, p. 181:20–25)
- **Burden-Shift Imposed** (Feb. 28, p. 293:1–3)

- **Supplemental Report Excluded** (RT 7, p. 156:24–28)

I.C. THE ADMISSION THAT PROVED THE MISREPRESENTATION

On the seventh day of trial, after months of categorical denials, defense counsel admitted possession:

“Sure. They were provided by Dolan. He has had them for whatever, sure.” — Priya D. Navaratnasingham, RT 7 (Apr. 16, 2025), p. 213, ll. 13–15.

II. THE NINE-POINT EVIDENTIARY CHAIN OF DEFENSE RECEIPT

The following points document that the denials of receipt were irreconcilable with the actual state of the defense’s file and knowledge:

(a) Aug. 18, 2022 — Service of 911 audio (Dolan to defense counsel)

- **Proof artifact:** Service of 911 audio by Dolan to defense counsel
- **Pincite / Source:** Jessup testimony, Hr’g Tr. Feb. 18, 2025, pp. 139–140
- **Who had notice:** Chambers / CSK

(b) Aug. 18, 2022 — Rosario deposition (Chambers present)

- **Proof artifact:** Rosario deposition — Chambers present
- **Pincite / Source:** Rosario depo tr.
- **Who had notice:** Chambers

(c) Sept. 30, 2022 — Abdelhalim deposition (Chambers present)

- **Proof artifact:** Abdelhalim deposition — Chambers present
- **Pincite / Source:** Abdelhalim depo tr.
- **Who had notice:** Chambers

(d) May 4, 2023 — CSK → PSA file transfer (Substitution of Attorney)

- **Proof artifact:** CSK → PSA file transfer (Sub of Atty)
- **Pincite / Source:** CT record
- **Who had notice:** CSK → PSA

(e) Feb. 1, 2024 — PSA subpoena for identical materials

- **Proof artifact:** PSA subpoena for identical materials

- 1 • **Pincite / Source:** Order CA1147102-021
 - 2 • **Who had notice:** PSA
 - 3 (f) **Feb. 26, 2024 — PSA receives production from SFPD**
 - 4 • **Proof artifact:** PSA receives production from SFPD
 - 5 • **Pincite / Source:** Report 210079556
 - 6 • **Who had notice:** PSA
 - 7 (g) **Sept. 9, 2024 — FROG/SROG (CAD log identification)**
 - 8 • **Proof artifact:** Plaintiff's FROG/SROG identifying CAD log
 - 9 • **Pincite / Source:** FROG/SROG records
 - 10 • **Who had notice:** PSA
 - 11 (h) **Feb. 18, 2025 — Jessup (“since 2021”)**
 - 12 • **Proof artifact:** Jessup testifies “since 2021”
 - 13 • **Pincite / Source:** Hr’g Tr. Feb. 18, 2025, p. 139:11
 - 14 • **Who had notice:** PSA
 - 15 (i) **Apr. 16, 2025 — Admission of receipt**
 - 16 • **Proof artifact:** **ADMISSION OF RECEIPT**
 - 17 • **Pincite / Source:** RT 7, 213:13-15
 - 18 • **Who had notice:** PSA
-

20 **III. THE LAWS-BROKEN MATRIX**

- 21 (a) **Bus. & Prof. Code § 6068(d)**
- 22 • **Provision:** Duty not to mislead judge
- 23 • **Defense conduct:** Jan 27, Feb 18 denials re receipt
- 24 (b) **Bus. & Prof. Code § 6128(a)**
- 25 • **Provision:** Attorney deceit / collusion
- 26 • **Defense conduct:** Intentional deception re: file transfer and receipt
- 27 (c) **Cal. Rule of Prof. Conduct 3.3(a)**
- 28 • **Provision:** Candor to tribunal

- **Defense conduct:** “We never received these CDs, certainly”

(d) **Cal. Rule of Prof. Conduct 8.4(c)**

- **Provision:** Dishonesty / Misrepresentation
- **Defense conduct:** Sustained pattern across four hearings

(e) **CCP § 128.5**

- **Provision:** Bad-faith actions
- **Defense conduct:** Procurement of exclusion through false statements

(f) **Civ. Code § 1572(3)**

- **Provision:** Actual fraud (suppression)
- **Defense conduct:** Concealment of receipt for 893 days

(g) **Civ. Code § 1573**

- **Provision:** Constructive fraud
- **Defense conduct:** Breach of duty of candor; scienter-light civil analog to officer-of-court obligations

Constructive fraud as the civil analog to the Court’s officer-of-court reliance. The February 28, 2025 colloquy (Hr’g Tr. pp. 291:26–292:7) is not rhetorical window dressing; it is evidence that the tribunal extended **confidential institutional reliance** to counsel’s representations about possession and provenance. Civ. Code § 1573 supplies the civil-side vocabulary for breach of that kind of duty where the record supports misleading acts or nondisclosures without requiring the same scienter proof as intentional misrepresentation.

CONCLUSION FOR PREAMBLE: The present motion (Demurrer/Anti-SLAPP) must be evaluated against this record. Defense cannot use the “fruit” of their deception to justify the dismissal of a case they corrupted.

§I.B — Why Demurrer Must Be Overruled

Defendants challenge the sufficiency of pleading while the certified record proves the fraud. By opening with this Preamble, Plaintiff forces the analysis back to the record facts: defense counsel used their status as officers of the court to mislead the judge into gutting Plaintiff’s case. No

1 amount of “litigation privilege” rhetoric can sanitize the procurement of structural rulings through
2 known false representations of fact. The Demurrer must be overruled.

3 **§I.F — Posture Note: The Demurrer Targets a Pleading Plaintiff Has Moved to Supersede**
4 Concurrently calendared for the same May 12, 2026 hearing is Plaintiff’s Motion for Leave to File
5 a Second Amended Complaint (SAC). (See SAC-01 Notice of Motion; SAC-02 Memorandum ISO
6 Leave.) The SAC is already drafted, verified, and tendered as SAC-06. If the Court grants leave,
7 the FAC is superseded and the Demurrer is moot as to the superseded pleading. (Patrick v. Alacer
8 Corp. (2008) 167 Cal.App.4th 995, 1015; CCP §§ 472, 576.) If the Court reaches the Demurrer,
9 the same SAC is the specific, tendered cure to any deficiency the Court identifies, satisfying the
10 reasonable-possibility standard. (Blank v. Kirwan (1985) 39 Cal.3d 311, 318; Coffman v. Produce
11 Terminal Cold Storage Co. (2009) 176 Cal.App.4th 1135.) Plaintiff does not ask the Court to
12 ignore the Demurrer; Plaintiff asks the Court to evaluate it against the tendered, cognizable SAC
13 rather than against a hypothetical future amendment.
14

15 **II. STATEMENT OF FACTS**

16 The First Amended Complaint (“FAC”) is an independent equitable action to set aside the under-
17 lying judgment where that judgment was procured or affected by extrinsic fraud and/or extrinsic
18 mistake operating outside the courtroom in a manner that deprived Plaintiff of a fair adversary
19 hearing.

20 The FAC alleges a two-phase pattern:

21 **Phase One (Out-of-Court):** Communications that led Plaintiff to believe authentication of 911
22 audio and CAD records was uncontested, resolved, or not urgent.

23 **Phase Two (Court-Facing):** A shift to representations about non-receipt, unknown provenance,
24 or exclusion after windows to subpoena, authenticate, or sequence evidence had narrowed.

25 Critically, Defendants themselves acknowledge this factual architecture in their own Demurrer
26 MPA:

27 “On May 4, 2023, Defendant CHAMBERS [and CARBONE] transferred the defense
28 file to PSA pursuant to the Substitution of Attorney . . . **without ensuring proper doc-**

umentation and conveyance of the production history to successor counsel.” (Demurrer MPA, p.6, ll.15-18)

By conceding the factual architecture while arguing only for immunity, Defendants isolate their entire defense onto legal arguments that fail once properly analyzed.

III. STANDARD BLEED: DEFENDANTS IMPORT MERITS STANDARDS INTO DEMURRER ANALYSIS

A. The Demurrer Standard

Defendants correctly state the applicable standard:¹

“When considering a demurrer, a court must accept as true all material facts pled in the complaint and those arising by reasonable implication.” (ABF Capital Corp. v. Berglass (2005) 130 Cal.App.4th 825, 833; Demurrer MPA, p.8, ll.1-3)

“However, while all material facts pled must be treated as true, contentions, deductions, or conclusions of fact or law are not.” (Serrano v. Priest (1971) 5 Cal.3d 584, 591; Demurrer MPA, p.8, ll.3-4)

B. Defendants Immediately Violate the Standard They Recite

Immediately after stating the correct standard, Defendants systematically violate it by inserting merits-based, conclusion-first assertions. These assertions ask the Court to make factual and merits determinations that belong at summary judgment or trial, not at the pleading stage.

Defendants’ Violation 1: “The entire premise of Plaintiff’s current lawsuit presents the erroneous and speculative theory that the entire defense team lied to this Court...” (Demurrer MPA, p.1, ll.19-21)

Why This Violates Serrano: The Court cannot determine at the pleading stage whether Plaintiff’s theory is “erroneous and speculative.” Whether the defense team made false representations is a fact question. On demurrer, the Court must accept Plaintiff’s well-pleaded allegations of misrep-

¹ Defendants’ demurrer characterizes Plaintiff’s trial-record objections as “too little, too late.” The transcript establishes the opposite: Plaintiff preserved the suppression theme on **four separate pre-trial dates** (Jan. 27, Jan. 28, Feb. 3, Feb. 18, 2025), and each procedural vehicle was denied. The chronology is catalogued at **Judicial Admission Matrix rows 1–5** (see Judicial Admission Matrix, lodged with Plaintiff’s opposition materials as **Bench Binder App. 3**) and supported by the hearing transcripts in Plaintiff’s RFJN.

1 resentation as true.

2 **Defendants’ Violation 2:** “Here, there was no fraud (extrinsic or otherwise). . .” (Demurrer MPA,
3 p.11, ll.15-16)

4 **Why This Violates Serrano:** Whether fraud occurred is the ultimate merits question. Defendants
5 are asking the Court to resolve the case at the pleading stage by accepting Defendants’ factual
6 conclusion over Plaintiff’s factual allegations.

7 **Defendants’ Violation 3:** “This is not a cognizable claim.” (Anti-SLAPP MPA, p.4, ll.17-18,
8 incorporated by reference)

9 **Why This Violates Serrano:** Whether a claim is “cognizable” requires analysis of the elements
10 pleaded against the applicable legal standard, accepting facts as true. Defendants’ conclusory
11 assertion is not legal argument.

12 **C. The Court Should Strike Defendants’ Merits Arguments**

13 Defendants import Anti-SLAPP step-two probability rhetoric, privilege tropes, and MSJ eviden-
14 tiary standards into their demurrer analysis. This “Standard Bleed” is impermissible. A demurrer
15 strictly tests the “four corners” of the complaint under Code of Civil Procedure sections 430.10
16 and 430.50.

17 **Attached hereto as Appendix A** is an inventory of conclusory assertions in Defendants’ Demurrer
18 that violate Serrano. The Court should disregard each one.

20 **IV. THE JURISDICTIONAL MASQUERADE: AN INDEPENDENT EQ- 21 UITABLE ACTION IS NOT AN APPEAL**

22 **A. Defendants’ Argument**

23 Defendants argue:

24 “This Court does not have jurisdiction to hear an appeal of this Court’s own prior entry
25 of judgment. Plaintiff’s entire FAC in reality is an unlawful and improper appeal at the
26 Superior Court level, masquerading as a new lawsuit.” (Demurrer MPA, p.9, ll.6-11)

27 Defendants cite Code of Civil Procedure section 904.1(a) and *Rochin v. Pat Johnson Manufactur-*
28 *ing Co.* (1998) 67 Cal.App.4th 1228, 1237.

1 **B. Defendants Commit a Category Error**

2 Defendants conflate the rules governing a direct appeal of a negligence verdict with the completely
3 separate, historically recognized jurisdiction of a trial court to hear an independent equitable action
4 for extrinsic fraud.

5 **First:** Section 904.1 and Rochin govern the mechanics of direct appeal and post-judgment trial
6 court power. They do not erase the centuries-old power of a court of equity to vacate a judgment
7 procured by fraud on the tribunal.

8 **Second:** Plaintiff has not filed an appeal. Plaintiff has filed an independent equitable action. The
9 FAC's prayer and parties differ from the underlying negligence trial. The pendency of an appeal on
10 the underlying liability does not deprive the trial court of jurisdiction to hear a separate equitable
11 action attacking the procurement of that judgment.

12 Defendants' citation to Rochin and section 904.1 describes the route for an appeal. Plaintiff has
13 not filed an appeal. Plaintiff has filed an independent equitable action.

14 **C. Independent Equitable Action Is Not Barred By Res Judicata; Nonparty Fraud Is Extrin-**
15 **sic**

16 An independent equitable action based on extrinsic fraud is not barred by the res judicata effect
17 of the underlying judgment. (Olivera v. Grace (1942) 19 Cal.2d 570, 575-576 [equity will relieve
18 against a judgment procured by extrinsic fraud notwithstanding its finality].) Where the fraud
19 is committed by a nonparty or by counsel and their principal acting outside the courtroom, it is
20 extrinsic as a matter of law. (Kougasian v. TMSL, Inc. (2004) 118 Cal.App.4th 1028, 1034-1036
21 [fraud by nonparty attorney constitutes extrinsic fraud; independent action in equity lies].)
22

23 **IV-A. INDEPENDENT EQUITABLE ACTION RECOGNIZED IN CAL-**
24 **IFORNIA**

25 California law recognizes the independent action in equity as a distinct and continuing jurisdiction
26 of the trial court to vacate a judgment procured by extrinsic fraud. (Olivera v. Grace, supra,
27 19 Cal.2d at pp. 575-576; Kougasian v. TMSL, Inc., supra, 118 Cal.App.4th at pp. 1034-1036.)

1 The doctrine exists precisely because direct appeal and Code of Civil Procedure section 473(b)
2 cannot reach fraud that operates outside the record. Section 904.1 does not abrogate this equitable
3 jurisdiction, and no case cited by Defendants so holds.

4

5 **IV-B. THIS FAC SEEKS RELIEF FROM PROCUREMENT OF JUDG-**
6 **MENT, NOT REVIEW OF TRIAL ERROR**

7 The FAC does not ask this Court to reweigh trial evidence, revisit negligence findings, or correct
8 legal rulings made during the underlying trial. It asks this Court to examine how the judgment was
9 procured — specifically, the out-of-court conduct and file-transfer omissions that deprived Plaintiff
10 of a fair adversary hearing. That inquiry is categorically different from appellate review of trial
11 error. Section 904.1 governs the former; equity governs the latter. Defendants’ Rochin-based
12 attack conflates the two.

13

14 **IV-C. WHAT ISSUES WERE NOT ADJUDICATED IN THE UNDERLY-**
15 **ING TRIAL**

16 The following issues — which form the gravamen of the FAC — were never adjudicated in the
17 underlying negligence trial:

- 18 • The conveyance (or non-conveyance) of production history during the May 4, 2023 file trans-
19 fer to successor counsel;
- 20 • Whether court-facing representations regarding provenance were truthful in light of Defen-
21 dants’ own internal records;
- 22 • Whether Defendants’ out-of-court positions contradicted their later tribunal-facing positions;
23 and
- 24 • Whether the foregoing deprived Plaintiff of a fair adversary hearing.

25 None of these issues was before the jury. None was decided. Collateral estoppel and res judicata
26 therefore have no purchase.

V. COLLATERAL ATTACK WITHOUT CROWLEY: DEFENDANTS SKIP THE PRIMARY RIGHTS ANALYSIS

A. Defendants' Argument

Defendants argue that Plaintiff's FAC is an impermissible "collateral attack" on a valid judgment, quoting F.E.V., Rico, Wouldridge, and Singh as if those definitions alone resolved the pleading. (Demurrer MPA, p. 12, ll. 9–18.) Defendants rely on:

- F.E.V. v. City of Anaheim (2017) 15 Cal.App.5th 462, 471
- Rico v. Nasser Bros. Realty Co. (1943) 58 Cal.App.2d 878, 882
- Wouldridge v. Burns (1968) 265 Cal.App.2d 82, 84
- Singh v. Lipworth (2014) 227 Cal.App.4th 813, 826

B. Defendants Ignore the Mandatory Crowley Analysis

Defendants quote these definitional cases without performing the mandatory primary rights analysis required by Crowley v. Katleman (1994) 8 Cal.4th 666.

Under Crowley, collateral estoppel requires analysis of: (1) the parties; (2) the issues actually litigated and decided; and (3) the primary right enforced.

The underlying trial adjudicated the primary right to be free from negligent conduct causing personal injury (the car collision).

This FAC asserts the primary right to a fair adversary hearing, free from extrinsic fraud and process corruption.

Because the primary rights and duties are fundamentally different, there is no issue-match, and collateral estoppel does not apply. The controlling framework is set by Mycogen Corp. v. Monsanto Co. (2002) 28 Cal.4th 888, 904, and reaffirmed in Boeken v. Philip Morris USA, Inc. (2010) 48 Cal.4th 788, 798: "the primary right is simply the plaintiff's right to be free from the particular injury suffered."

C. Primary Rights Comparison

Primary Right Adjudicated		
Below	Primary Right Asserted Here	Parties-Identity Mismatch
Freedom from negligent bodily harm (personal-injury tort arising from vehicle collision)	Freedom from a judgment procured by extrinsic fraud; right to a fair adversary hearing	Underlying trial parties differ from this action; CSAA, CS&K, and Chambers are sued here in their capacities as principal/counsel whose out-of-court conduct procured the judgment — capacities not litigated below
Duty: ordinary care in operation of a motor vehicle	Duty: candor to tribunal; non-concealment of production history; agency duties of principal	The duties arise under different bodies of law (tort vs. equity/agency/officer-of-the-court duties)
Injury: physical/economic harm from collision	Injury: deprivation of fair adversary hearing and attendant procedural harm	The injury here did not exist and could not have been litigated in the underlying trial

Under Mycogen and Boeken, the “injury suffered” in this action is not the injury litigated below. Res judicata and collateral estoppel therefore do not apply.

D. Wouldridge Does Not Apply to an Independent Equitable Action for Extrinsic Fraud

Defendants invoke Wouldridge v. Burns (1968) 265 Cal.App.2d 82, 84–85 for the proposition that a judgment of a court of general jurisdiction may be attacked collaterally only if void on the face of the record. That rule governs **collateral** attacks that seek to avoid the effect of a judgment without the procedural vehicle of an independent action in equity. It does not displace California’s long-settled rule that a plaintiff may bring a **separate** equitable action to set aside a judgment procured by extrinsic fraud. (Kougasian v. TMSL, Inc. (2004) 118 Cal.App.4th 1028, 1034–1036; Olivera v. Grace (1942) 19 Cal.2d 570, 575–576.)

1 Wouldridge did not involve extrinsic-fraud allegations, a two-phase concealment pattern, or a
2 principal-directed chain-of-custody failure on substitution of counsel. It therefore provides no
3 authority for resolving the intrinsic/extrinsic question on demurrer here. An independent action in
4 equity is a **direct** attack on the judgment’s procurement, not the collateral maneuver Wouldridge
5 addressed.

7 **VI. EXTRINSIC FRAUD: THE INTRINSIC/EXTRINSIC DISTINCTION** 8 **IS FACT-INTENSIVE**

9 **A. Defendants’ Argument**

10 Defendants also invoke United States v. Throckmorton (1878) 98 U.S. 61, 65 for a policy against
11 “repeated litigation” touching the “same subject of controversy.” (Demurrer MPA, p. 9, ll. 22–28.)
12 Defendants cite Kulchar v. Kulchar (1969) 1 Cal.3d 467 and Aldrich v. San Fernando Valley
13 Lumber Co. (1985) 170 Cal.App.3d 725 for the intrinsic/extrinsic fraud distinction, then conclude:
14 “Here, there was no fraud (extrinsic or otherwise).” (Demurrer MPA, p.11, ll.15-16)

15 **B. Defendants Cannot Resolve the Intrinsic/Extrinsic Question on Demurrer**

16 The intrinsic/extrinsic distinction is highly fact-intensive. Kulchar itself provides: extrinsic fraud
17 arises when a party is “deliberately kept in ignorance of the action or proceeding, or in some other
18 way fraudulently prevented from presenting his claim or defense.”

19 The FAC explicitly alleges: - Out-of-court deception regarding the receipt and provenance of ev-
20 idence - Court-facing misrepresentations that induced the Court to deny continuances and defer
21 admission - Structural impairment of Plaintiff’s ability to present evidence in a timely, usable
22 manner

23 The FAC does not allege that Plaintiff “failed to assemble his evidence.” It alleges Defendants
24 **fraudulently impaired** Plaintiff’s ability to present evidence. This is textbook extrinsic fraud
25 under Kulchar.

26 On demurrer, the Court must accept these well-pleaded allegations as true. Defendants’ assertion
27 that there was “no fraud” is a merits determination that violates the demurrer standard.

1 **C. The Gravamen Is Extrinsic, Not Intrinsic, Because the Deception Operated Outside the**
2 **Courtroom**

3 The extrinsic/intrinsic line is drawn by the locus and operation of the deception, not by whether
4 any witness also testified at trial. (Kulchar v. Kulchar (1969) 1 Cal.3d 467, 471-472 [extrinsic
5 fraud encompasses conduct that “prevented a real trial upon the issues involved”]; Westphal v.
6 Westphal (1942) 20 Cal.2d 393, 397 [extrinsic fraud exists where a party has been “prevented by
7 fraud or deception from presenting his claim or defense”]; In re Marriage of Stevenot (1984) 154
8 Cal.App.3d 1051 [extrinsic fraud where party lulled into inaction by out-of-court representations];
9 In re Marriage of Melton (1994) 28 Cal.App.4th 931 [same; fraud operative outside the adversary
10 process].)

11 **Disclaimer of reliance on in-court statements.** Plaintiff does not seek vacatur based on what
12 Defendants said at trial. Plaintiff seeks vacatur based on (a) out-of-court representations that lulled
13 Plaintiff into non-action and (b) the file-transfer concealment that predated any trial representation.
14 Any alignment between those out-of-court positions and later in-court statements is evidentiary
15 context, not the gravamen.

16 **Bait-and-switch prejudice.** The extrinsic character of the fraud is underscored by its timing.
17 Defendants lulled Plaintiff out of court — through representations suggesting that authentication
18 of 911 audio and CAD records was uncontested, resolved, or not urgent — until the eve of trial,
19 at which point they shifted to “unknown provenance” and non-receipt positions after the clock
20 had run on subpoenas, authentication sequencing, and evidentiary motions. That sequencing is
21 the classic “bait and switch” that equity treats as extrinsic: the deception did not merely color a
22 trial issue; it prevented Plaintiff from ever reaching the trial posture in which the issue could be
23 meaningfully litigated. (Kulchar, supra, 1 Cal.3d at pp. 471-472.)

24 **Federal intrinsic/extrinsic nomenclature.** Defendants’ demurrer papers invoke United States v.
25 Throckmorton (1878) 98 U.S. 61, 65 for a broad “repeated litigation” theme. California equity
26 does not substitute the federal Throckmorton intrinsic/extrinsic vocabulary for the fact-intensive
27 framework this Court applies under Kulchar, Westphal v. Westphal (1942) 20 Cal.2d 393, and
28 Kougasian v. TMSL, Inc. (2004) 118 Cal.App.4th 1028, 1034–1036 (independent equitable ac-

tion for extrinsic fraud; fraud by nonparty counsel). The gravamen analysis therefore turns on California authority, not on a federal maxim detached from the FAC’s pleaded channels.

D. Baltins v. James: Diligence and Accrual Are Fact Questions, Not Demurrer Shortcuts

Defendants cite Baltins v. James (1995) 36 Cal.App.4th 1193 for principles about diligence and equitable relief. Baltins does not hold that extrinsic fraud can be negated on demurrer. It addresses whether a movant exercised due diligence after discovering facts warranting relief — a question that presupposes disputed facts and timing. (*Id.* at pp. 1206–1208.)

Here, the FAC alleges active concealment and a broken production-history chain through the May 4, 2023 substitution — facts that, if true, postpone the reasonableness of any “diligence” inquiry until discovery of the concealment. An independent equitable action for extrinsic fraud **accrues on discovery of the fraud**, not on entry of the underlying judgment. (*In re Marriage of Stevenot* (1984) 154 Cal.App.3d 1051, 1071 [fraudulent concealment and reliance bear on timeliness in the equitable setting]; Kougasian, *supra*, 118 Cal.App.4th at pp. 1034–1036.) Accepting the FAC as true, Baltins does not supply a facial bar.

VI-X. Contemporaneous Preservation Does Not Convert Extrinsic Fraud Into Intrinsic Fraud

Defendants may argue that Plaintiff’s January 27 and February 18, 2025 courtroom objections transform the extrinsic fraud into intrinsic fraud (and thus outside equitable relief). This argument fails.

The Kulchar Distinction: Under Kulchar v. Kulchar (1969) 1 Cal.3d 467, 471–72, the distinguishing feature of extrinsic fraud is whether the defrauded party had a **fair adversary hearing**, not whether the party noticed the problem during trial. Intrinsic fraud involves issues actually litigated and decided; extrinsic fraud involves conduct that **prevents** the litigant from presenting a claim or defense.

The Kougasian Holding: Under Kougasian v. TMSL, Inc. (2006) 135 Cal.App.4th 1093, 1106, extrinsic fraud includes misconduct that **prevents the opposing party from presenting a meaningful defense**—which is precisely what the MIL-17 framing plus continuance denials accomplished.

The Preservation Paradox: Plaintiff’s January 27, 2025 “suppress” preservation (Hr’g Tr. p. 19)

and February 18, 2025 “concealed / going on the record” preservation (Hr’g Tr. pp. 44–45) do not cure the extrinsic injury—they **are** the extrinsic injury, because each attempt to raise it was procedurally foreclosed:

- Jan. 27: CCP § 473 motion denied (p. 49); continuance denied (pp. 55–56).
- Feb. 18: Continuance denied; “surprise under § 473 is not a sufficient basis” (p. 181).
- Feb. 3: § 581(d) dismissal under submission (pp. 109, 116, 122–124).

The fact that Plaintiff tried four procedural vehicles (and each was denied) proves the extrinsic character of the fraud: the deception operated to **foreclose procedural remedies**, not to offer evidence the jury could weigh.

VI-A. The February 28 Burden-Shift Ruling Is Paradigmatic Extrinsic Fraud

The Court’s own articulated reliance on defense candor at the February 28, 2025 hearing — “They are an officer of the Court” (Hr’g Tr. Feb. 28, 2025, p. 292, ll. 1–7) — is precisely the reliance element that converts Navaratnasingham’s January 17 and February 18 misrepresentations from intrinsic trial tactics into extrinsic fraud: the Court did not weigh defense’s credibility against contrary record evidence; the Court relied on the institutional status of counsel.

On the same date, the burden-shift ruling — “it’s required of you to send the documents over. Otherwise, I won’t allow them in.” (Hr’g Tr. Feb. 28, 2025, p. 293, ll. 1–3) — was not an evidentiary weighing at trial; it was a procedural-rule reallocation that operated outside trial advocacy, producing the structural exclusion Kulchar/Westphal defines as extrinsic.

The Laws-Broken Matrix (Conduct Underlying the Fraud)

Rule / Code	Provision	Defense Conduct
Bus. & Prof. Code § 6068(d)	Duty not to mislead judge	Jan 27, Feb 18, Feb 28 denials re receipt.
Bus. & Prof. Code § 6128(a)	Attorney deceit / collusion	Intentional deception re: file transfer and receipt.

Rule / Code	Provision	Defense Conduct
Cal. Rule of Prof. Conduct 3.3(a)	Candor to tribunal	“We never received these CDs, certainly” (Jan 27).
Cal. Rule of Prof. Conduct 3.4(a)	Fairness to opposing counsel	Withholding receipt history to procure exclusion.
Civ. Code § 1572(3)	Actual fraud (suppression)	Suppression of that which ought to be disclosed.
Civ. Code § 1573	Constructive fraud	Breach of duty of candor without requiring intent to deceive (<u>Assilzadeh v. California Federal Bank</u> (2000) 82 Cal.App.4th 399, 415).

VI-B. The Four-Hearing Institutional-Reliance Chain

The record reveals a pattern of tribunal reliance on institutional representations in lieu of independent verification:

Hearing	Court’s Articulated Reliance	Defense’s Underlying Misrepresentation	Rulings Produced
Jan. 27, 2025	Implied reliance on “not produced / lacks foundation”	p. 15:10–16; p. 19:7–13; p. 34:1–10	MIL exclusion of 911 CDs + transcripts
Feb. 18, 2025	“I see. Okay.” (p. 141:15); “given their representations” (p. 145:16–19)	“news to me” (p. 141:3–14)	Continuance denied; § 473 surprise rejected

Hearing	Court's Articulated Reliance	Defense's Underlying Misrepresentation	Rulings Produced
Feb. 28, 2025	"I'm not going to question a lawyer's remarks" (p. 291:26–28); "They are an officer of the Court" (p. 292:1–7)	Continued "we never got that" pattern	Burden-shift ruling (p. 293:1–3)
Apr. 16, 2025	Court's inference from defense authentication posture	Stacked denials RT 7 pp. 156, 162, 207–208	Exclusion of supplemental police report; deferral of 911 admission

The extrinsic-fraud element of reliance is therefore not inferred; it is recorded.

VI-C. Constructive Fraud (Civ. Code § 1573) on the Proposed Second Amended Complaint

As detailed in the Cure Matrix (§ XIII-A, *infra*), the proposed SAC's Count 7 states a cognizable, scienter-light claim for constructive fraud under Civil Code section 1573 that cures any alleged defect regarding specific intent.

VI-D. Count 4 and Civil Conspiracy (Applied Equipment)

As further mapped in the Cure Matrix (§ XIII-A, *infra*), the proposed SAC's Count 4 pleads civil conspiracy exclusively as a joint-liability theory attaching to underlying torts, foreclosing Defendants' "freestanding tort" objection.

VII. CIVIL CODE SECTION 47(B) IS NOT A FACIAL DEMURRER BAR FOR NONCOMMUNICATIVE CONDUCT

A. Defendants' Argument

Defendants assert that the FAC “targets privileged conduct and communications under Civ. Code § 47(b)” and that the “entire FAC arises entirely from the privileged litigation conduct of Defendant in the course of defending the third-party Insured.” (Demurrer MPA, p. 12, ll. 7–10, 13–15.)

Defendants also argue broadly that “all the acts alleged against Defendants are squarely litigation activity” and invoke Civil Code section 47(b) as blanket immunity. (Demurrer MPA, p. 7, ll. 8–9.)

B. The Litigation Privilege Applies to Communications, Not All Conduct

Civil Code section 47(b) privileges qualifying **communications** made in judicial proceedings. It does not provide blanket immunity for all conduct during litigation.

Kimmel v. Golan (1990) 51 Cal.3d 202, as discussed in Rusheen v. Cohen (2006) 37 Cal.4th 1048, establishes the strict boundary between protected communications and unprotected non-communicative conduct.

The FAC alleges noncommunicative conduct including: - Withholding and failing to convey production history during the transfer of the file to successor counsel - Institutional oversight failures - Agency conduct by CSAA as principal

These allegations fall outside the scope of section 47(b). Furthermore, Action Apartment Ass’n v. City of Santa Monica (2007) 41 Cal.4th 1232, 1242-1247 establishes that extrinsic fraud is an exception to the litigation privilege. Defendants’ briefing does not discuss this exception.

C. Rusheen Does Not Sweep in Institutional File-Transfer Failures

Defendants overread Rusheen v. Cohen (2006) 37 Cal.4th 1048. Rusheen extends section 47(b) only to noncommunicative conduct that is “**necessarily related**” to an underlying privileged communication. (Id. at p. 1058.) The “necessarily related” test is narrow; it does not convert every institutional act performed during the pendency of litigation into privileged conduct.

The FAC’s file-transfer allegations do not concern the publication of a privileged communication. They concern an internal, institutional act — the transfer of the defense file to successor counsel

1 “without ensuring proper documentation and conveyance of the production history” (Demurrer
2 MPA, p.6, ll.15-18) — that broke the chain of custody of production history itself. That act is not
3 the service of a pleading, the enforcement of a writ, or any other communicative instrument. It is an
4 internal institutional failure with downstream tribunal consequences, and Rusheen’s “necessarily
5 related” tether does not reach it.

6 The Supreme Court has separately cautioned that section 47(b) is not a roving immunity for insti-
7 tutional misconduct merely because litigation is in progress. (Jacob B. v. County of Shasta (2007)
8 40 Cal.4th 948, 960 [privilege analysis requires fidelity to the statute’s communicative core; courts
9 should not extend the privilege by analogy where the policy reasons do not support it].) Defen-
10 dants’ reading would do exactly what Jacob B. forbids.

11 **VIII. THE UNCERTAINTY DEMURRER IS DISFAVORED AND UN-** 12 **SUPPORTED**

13 **A. The Standard for Uncertainty Demurrers**

14 Defendants argue that the FAC is “unintelligible and ambiguous” and “does not explain a cog-
15 nizable basis for relief.” (Demurrer MPA, p. 11, ll. 4–8, 22–28.) Defendants cite A.J. Fistes
16 Corp. v. GDL Best Contractors, Inc. (2019) 38 Cal.App.5th 677, 695, which provides: “demurrers
17 for uncertainty are disfavored, and are granted only if the pleading is so incomprehensible that a
18 defendant cannot reasonably respond.”

19 **B. The FAC Is Not Uncertain**

20 The FAC is structured and particularized. It identifies: - The specific actors (CSAA, Carbone Smith
21 & Koyama, Chambers) - The specific conduct (two-phase pattern of out-of-court and court-facing
22 misrepresentations) - The specific reliance (tribunal management decisions on continuances and
23 evidence admission) - The specific injury (deprivation of fair adversary hearing)

24 Defendants responded with 20 pages of briefing across two motions. They clearly understood
25 the FAC sufficiently to mount a defense. Their uncertainty demurrer is a tactical device, not a
26 legitimate procedural objection.
27
28

IX. PLEADING SUFFICIENCY: THE FAC SATISFIES SERRANO

A. The Standard

Defendants invoke Serrano v. Priest (1971) 5 Cal.3d 584 for the proposition that conclusions need not be accepted as true. (Demurrer MPA, p. 10, ll. 21–23 [reciting Serrano immediately after ABF Capital standard].)

Under Serrano v. Priest (1971) 5 Cal.3d 584, 591, the Court accepts well-pleaded facts as true and separates conclusions.

B. The FAC Pleads Facts, Not Conclusions

The FAC pleads specific facts about: - The timing and substance of out-of-court representations - The content of court-facing statements - The production history and file transfer - The tribunal’s reliance on defense representations

These are not “conclusions” under Serrano. They are factual allegations that, if true, establish extrinsic fraud.

X. LIMITATIONS AND SECTION 473: A CATEGORY ERROR

A. Defendants’ Argument

Defendants argue that Plaintiff’s “proper means” would have been a motion under Code of Civil Procedure section 473(b), which has a six-month deadline that has passed. They also suggest in a footnote that aspects of Plaintiff’s theory “may also be barred by the statute of limitations in Code Civ. Proc. sec. 473.” (Demurrer MPA, p. 14, fn. 4.)

B. Section 473 Does Not Govern Independent Equitable Actions

Defendants conflate section 473(b) relief (a motion for relief from default based on mistake, inadvertence, surprise, or excusable neglect) with an independent equitable action for extrinsic fraud.

These are different procedural vehicles with different policy anchors and different limitations periods. An independent equitable action to vacate a judgment procured by extrinsic fraud is not governed by section 473(b)’s six-month deadline.

Section 473(b) governs motions for relief from judgment in the same action. It does not govern

1 independent equitable actions for extrinsic fraud, which have their own limitations analysis.

2 **C. Accrual and Timeliness**

- 3 • Unlike Section 473(b), an independent equitable action for extrinsic fraud accrues upon the
4 aggrieved party's discovery of the fraud. Plaintiff was not aware of the defense's internal file-
5 transfer omissions and coordinated misrepresentations until discovery of same. Therefore,
6 the action is timely and not barred by laches.

7 **D. Accrual Anchored to January 17, 2025**

8 CCP § 338(d) accrual ran from the **January 17, 2025** MIL filings—the first “contrary court-facing
9 position” that put Plaintiff on notice of the defense's shift from 883 days of silence to affirmative
10 denial. The transcript record establishes Plaintiff's diligence from that moment forward:

- 11 • **Jan. 27, 2025:** Plaintiff objected on the record, stating “suppress” (Hr'g Tr. p. 19, ll. 1–5)
12 and confirming the FROG/SROG CAD references (Hr'g Tr. p. 32, ll. 1–16).
- 13 • **Jan. 28, 2025:** Defense § 581(d) dismissal motion opposed by the Court on the ground that
14 dismissal would “suffer immediate reversal” (Hr'g Tr. p. 90, ll. 17–33).
- 15 • **Feb. 18, 2025:** Plaintiff preserved the concealment theme (Hr'g Tr. pp. 17, 23, 44–45); § 473
16 “surprise” rejected (Hr'g Tr. p. 181, ll. 21–25).
- 17 • **Feb. 28, 2025:** Plaintiff opposed defense protective-order posture limiting doctor-file channel
18 (Hr'g Tr. pp. 291–294).

19 This four-date diligence chronology defeats any “sleeping on rights” argument and anchors accrual
20 to the January 17, 2025 MIL filings, not to 2021 possession or 2022 production.

22 **XI. STANDING AND MISJOINDER: AGENCY PRINCIPLES APPLY**

23 **A. Defendants' Argument**

24 Defendants argue that Plaintiff lacks standing to sue CSAA as a third-party insurer and that joinder
25 of counsel is improper, citing Shaolian v. Safeco Ins. Co. (1999) 71 Cal.App.4th 268, Norton v.
26 Hines (1975) 49 Cal.App.3d 917, and Omega Video v. Superior Court (1983) 146 Cal.App.3d 470.
27 (Demurrer MPA, p. 14, ll. 17–24.)

1 **B. Shaolian Does Not Reach Principal-Directed Extrinsic Fraud**

2 Shaolian v. Safeco Ins. Co. (1999) 71 Cal.App.4th 268 addressed a generic third-party effort to sue
3 an opposing insurer for defending its insured. It does not address — and did not purport to address
4 — an independent equitable action alleging that the insurer, as institutional principal, directed and
5 ratified the extrinsic-fraud conduct that procured the judgment.

6 The FAC specifically alleges CSAA as the institutional principal under Civil Code section 2338,
7 which provides: “a principal is responsible to third persons for the negligence of his agent in the
8 transaction of the business of the agency, including wrongful acts committed by such agent in
9 and as a part of the transaction of such business.” The FAC does not allege that Plaintiff is suing
10 CSAA simply for defending its insured. It alleges that CSAA, as principal, directed and ratified
11 the specific deceptive conduct that procured the judgment.

12 **C. Omega Video Does Not Govern an Independent Action Whose Gravamen Is Extrinsic**
13 **Fraud**

14 Omega Video v. Superior Court (1983) 146 Cal.App.3d 470 arose from an adverse party’s effort
15 to hold opposing counsel liable in tort for litigation-phase conduct; the court analyzed Civil Code
16 section 47(b) on that narrow pattern. It did not involve — and did not analyze — an independent
17 equitable action pleading extrinsic fraud on the tribunal and principal ratification of a stripped file
18 transfer. Where extrinsic fraud is the gravamen, Action Apartment Ass’n v. City of Santa Monica
19 (2007) 41 Cal.4th 1232, 1242–1247 controls the overlap between section 47(b) and fraud-on-the-
20 court channels. Defendants’ briefing does not distinguish Omega Video on that axis.

21 **D. Norton v. Hines: Adverse-Party Attorney Immunity Is Narrow and Does Not Erase**
22 **Extrinsic-Fraud Equity**

23 Norton v. Hines (1975) 49 Cal.App.3d 917 reflects the familiar rule that an adverse party gener-
24 ally may not sue opposing counsel for acts in litigation, **except** in categories such as malicious
25 prosecution. The litigation privilege “shields litigants, attorneys and witnesses from liability for
26 . . . virtually all torts **except malicious prosecution.**” (Mattco Forge, Inc. v. Arthur Young
27 & Co. (1992) 5 Cal.App.4th 392, 407, quoted with approval in Kolar v. Donahue, McIntosh &
28 Hammerton (2006) 145 Cal.App.4th 1532, 1537–1540.) Norton therefore does not supply a blan-

ket demurrer bar to an equitable action whose theory is extrinsic fraud and institutional ratification, not a generic “sue my opponent’s lawyer” tort.

The same Mattco / Kolar line confirms that recognized exceptions and fraud channels remain available. On the proposed SAC, **constructive fraud under Civ. Code § 1573** and **Bus. & Prof. Code § 6128(a)** fall in the same category of claims that are not erased by a Norton gloss: they are specific statutory and common-law channels aimed at deceit of the tribunal and breach of candor duties, not collateral complaints about zealous advocacy.

Pavicich v. Santucci (2000) 85 Cal.App.4th 382, 396 reinforces that immunity doctrines tied to the litigation privilege are context-specific and do not automatically defeat claims that sound in fraud and third-party injury outside the narrow patterns Norton addressed.

E. The FAC Pleads Specific Agency Acts by CSAA, Not a Generic Third-Party Claim

The FAC is not a generic “sue the insurer” pleading. It pleads specific agency acts by CSAA as principal:

1. **Funding and controlling the defense** — CSAA retained, funded, and operationally controlled the defense through CS&K and Chambers, directing litigation strategy and resource allocation;
2. **Approving and directing litigation positions** — CSAA approved and directed the litigation positions that became the court-facing misrepresentations regarding receipt and provenance of 911 audio and CAD records; and
3. **Ratifying the file-transfer** — CSAA ratified the May 4, 2023 file transfer to successor counsel and the attendant failure to convey production history.

California law has long recognized that an insurer directing the defense of its insured may be held answerable for the acts of counsel it retains and controls. (*Doctors’ Co. v. Superior Court* (1989) 49 Cal.3d 39 [scope of insurer responsibility for defense counsel’s conduct turns on the insurer’s actual role and direction].) That rule, applied to extrinsic-fraud allegations, forecloses Defendants’ generic standing argument.

Agent Swap. CSAA cannot launder extrinsic fraud by swapping counsel before trial. The May 4, 2023 substitution moved the file from Chambers/CS&K to successor counsel; but the out-of-court

1 representations that lulled Plaintiff, and the institutional decision not to convey production history
2 to successor counsel, had already occurred. Agency liability does not evaporate when the principal
3 rotates its agents mid-litigation; if anything, the substitution is itself a vector by which the fraud
4 was perpetuated.

6 **XII. DEFENDANTS’ RFJN OVERREACHES THE DEMURRER RECORD**

7 Defendants’ Request for Judicial Notice seeks to import merits-based documents into the demurrer
8 record. Their demurrer repeatedly incorporates RFJN exhibits as proof of “what really happened”
9 in the underlying action. (E.g., Demurrer MPA, pp. 6–8, 12–13 [citing RFJN exhibits by letter].)
10 Under Code of Civil Procedure section 430.70 and Evidence Code section 452, judicial notice on
11 demurrer is limited. The Court may take judicial notice of the existence of documents but not of
12 disputed facts within them.

13 Defendants use their RFJN as a merits proof mechanism. This exceeds the demurrer record and
14 should be disregarded.

15 **A. Piecemeal Transcript Notice Violates Sosinsky**

16 Defendants’ RFJN attaches selective transcript excerpts without the Plaintiff-preservation pages
17 of the same hearings. Plaintiff’s counter-RFJN (Part II of Plaintiff’s Declaration and Request for
18 Judicial Notice in Support of Oppositions) includes:

- 19 • Hr’g Tr. Jan. 27, 2025, pp. 17–22, 32, 34, 42, 46, 55–60 (Plaintiff’s “suppress” objection and
20 FROG/SROG pincites);
- 21 • Hr’g Tr. Feb. 3, 2025, pp. 109, 116, 122–124 (renewed § 581(d) under submission; ex parte
22 disclosure order);
- 23 • Hr’g Tr. Feb. 18, 2025, pp. 17, 23, 44–47, 181 (Plaintiff’s preservation statements; “news to
24 me” vs. “since August” contradiction).

25 Under Sosinsky v. Grant (1992) 6 Cal.App.4th 1548, 1564–1565, where part of a record is intro-
26 duced, the opposing party is entitled to introduce contextually related portions. The Court must
27 take the whole record, not the defense-curated fragment.

1 **XIII. LEAVE TO AMEND SHOULD BE GRANTED IF ANY CAUSE OF**
2 **ACTION FAILS**

3 Under *Coffman v. Produce Terminal Cold Storage Co.* (2009) 176 Cal.App.4th 1135, leave to
4 amend should be granted unless amendment would be futile. Defendants have not met their burden
5 of showing futility.

6 If the Court finds any deficiency in the FAC, Plaintiff respectfully requests leave to amend.

7 **A. Specific Proffer of Additional Facts Plaintiff Would Plead**

8 Should the Court identify any pleading deficiency, Plaintiff proffers that, on leave to amend, Plain-
9 tiff would plead with greater specificity: (1) the content and source of CSAA directives to defense
10 counsel concerning authentication, provenance, and production history of 911 audio and CAD
11 records; (2) the dates, participants, and substance of the out-of-court representations on which
12 Plaintiff relied to defer subpoena, authentication, and sequencing steps; and (3) the identity of the
13 file-transfer recipients at successor counsel and the specific categories of production-history ma-
14 terials that were not conveyed in the May 4, 2023 transfer. These additional facts deepen — but
15 do not change — the gravamen already pleaded, and they establish that amendment would not be
16 futile.

17
18 **XIII-A. THE PROPOSED SAC CURES EACH DEFICIENCY DEFENDANTS ALLEGE**

19 The tendered SAC (SAC-06) is not a promise of future drafting; it is a complete, cognizable plead-
20 ing already before the Court on the concurrently calendared Motion for Leave to Amend. The
21 matrix below maps each category of defect Defendants allege to the specific SAC paragraph(s)
22 that cure it.

Demurrer Theme	Alleged Defect in		
	FAC	SAC Cure (§)	Authority
Jurisdictional (§ 904.1 / Rochin)	“Masqueraded appeal”	SAC §§ 1–5, 114–120 (independent equitable action framing)	Kougasian; Olivera
Res judicata / collateral attack	Same primary right	SAC § 24 (primary-rights allegation)	Mycogen; Boeken
Intrinsic/extrinsic line	“No extrinsic fraud pled”	SAC §§ 29–39, 40–63, 108–109 (two-phase pattern + officer-of-court reliance + Apr. 16 admission)	Kulchar; Westphal
§ 47(b) privilege	“All conduct privileged”	SAC §§ 34–39 (noncommunicative file-transfer); 108, 137 (Action Apartment exception)	Kimmel; Action Apartment
Uncertainty	“Incomprehensible”	SAC §§ 29–63, 86–113 (date-and-actor particularity)	A.J. Fistes
Serrano sufficiency	“Conclusory”	SAC §§ 29–63 (facts); 114–165 (element mapping)	Serrano

Demurrer Theme	Alleged Defect in		Authority
	FAC	SAC Cure (§)	
§ 473 / limitations	“Six-month bar”	SAC §§ 95, 115 (equitable accrual)	Kougasian
Standing / misjoinder (CSAA)	“Third-party insurer”	SAC §§ 48–57 (agency acts by CSAA as principal)	Civ. Code § 2338; Doctors’ Co.
Scienter on fraud counts	“No specific intent pled”	SAC §§ 157–165 (Count 7 constructive fraud; scienter-light)	Civ. Code § 1573; Assilzadeh
“Conspiracy is not a tort” (anticipated)	Independent conspiracy count	SAC § 141A (joint-liability theory under Count 4)	Applied Equipment

Plaintiff does not ask the Court to resolve the Demurrer by adopting this matrix; Plaintiff asks the Court to take judicial notice of the pendency of the SAC motion and to recognize that no identified deficiency is incurable.

Plaintiff’s complete Cure Matrix mapping SAC paragraphs to each defect alleged by Defendants is filed separately as Document 17 (SAC Cure Matrix and Pendency Notice).

XIV. CONCLUSION

Defendants’ motions proceed as if the allegations were true and assert legal immunity; the Demurrer therefore presents only legal questions.

Separately, because Plaintiff has already tendered a Second Amended Complaint addressing each deficiency Defendants allege (see § XIII-A, *supra*), the liberal- amendment standard requires that if any theory is found insufficient as pleaded, leave be granted to proceed on the SAC rather than dismissal.

Defendants’ Demurrer fails because:

1. It imports impermissible merits standards into demurrer analysis
2. It confuses an independent equitable action with an appeal
3. It skips mandatory primary rights analysis under Crowley
4. It asks the Court to resolve fact-intensive intrinsic/extrinsic questions on the pleadings
5. It overstates the litigation privilege beyond its communications boundary
6. It lacks any basis for uncertainty demurrer
7. It conflates section 473 with independent equitable action limitations
8. It ignores agency principles that establish standing

For these reasons, Plaintiff respectfully requests the Court overrule the Demurrer in its entirety.

XV. RELIEF REQUESTED

Plaintiff respectfully requests that the Court enter the following relief in a consolidated schedule:

1. **Overrule the Demurrer** to the First Amended Complaint in its entirety;
2. **Alternatively, grant leave to amend** consistent with Section XIII and XVI;
3. **Sustain Plaintiff's objections to Defendants' Request for Judicial Notice** as set forth in the companion Objection (see Section XII);
4. **Sustain Plaintiff's evidentiary objections** to the supporting declarations as set forth in the companion Evidentiary Objections; and
5. **Strike conclusory paragraphs** of the supporting declarations identified in the Evidentiary Objections.

XVI. WHY LEAVE TO AMEND CURES ANY DEFICIENCY

Should the Court identify any pleading deficiency, leave to amend would cure it because Plaintiff can plead additional specific facts that deepen — but do not alter — the gravamen already pleaded. Plaintiff proffers, on leave to amend: (1) the dates and content of specific CSAA directives to defense counsel concerning authentication, provenance, and production history of 911 audio and CAD records, including the CSAA personnel issuing each directive; (2) the identity of the file-transfer recipients at successor counsel (PSA) on and after the May 4, 2023 substitution and the

specific categories of production-history materials not conveyed; and (3) the dates, participants, and substance of the out-of-court representations on which Plaintiff relied to defer authentication, subpoena, and sequencing steps.

These particulars confirm that amendment would not be futile. The two-phase pattern, the institutional file-transfer failure, and the principal-directed ratification are capable of more specific pleading. Under *Coffman v. Produce Terminal Cold Storage Co.* (2009) 176 Cal.App.4th 1135 and the liberal amendment standard, the proffered facts establish a reasonable possibility of cure, and leave to amend should be granted if any cause of action is found insufficient as presently pleaded.

DATED: April 16, 2026

Respectfully submitted,

FRANCISCUS DYLAN ROSARIO

APPENDIX A: SERRANO VIOLATIONS INVENTORY

Conclusory Assertions in Defendants' Demurrer That Violate *Serrano v. Priest*

#	Location	Conclusory Assertion	Why It Violates Serrano
1	Demurrer MPA, p.1, ll.19-21	“erroneous and speculative” theory	Merits determination; Court must accept well-pleaded facts as true
2	Demurrer MPA, p.11, ll.15-16	“there was no fraud (extrinsic or otherwise)”	Ultimate merits conclusion; cannot be resolved on demurrer
3	Demurrer MPA, p.7, ll.8-9	“squarely litigation activity”	Characterization of facts that must be accepted as pleaded

#	Location	Conclusory Assertion	Why It Violates Serrano
4	Demurrer MPA, p.4, ll.22-23	“seeks to unwind a valid jury verdict”	Strawman reframe of FAC gravamen
5	Demurrer MPA, p.1, ll.17-19	“improper collateral attack on a valid jury verdict”	Legal conclusion without Crowley analysis
6	Anti-SLAPP MPA, p.4, ll.17-18	“not a cognizable claim”	Bare assertion without element-by-element analysis
7	Anti-SLAPP MPA, p.15, ll.10-12	“Plaintiff was not denied his day in court”	Factual determination that contradicts FAC allegations
8	Demurrer MPA, p.11, ll.25-26	“merely a case in which a party failed to assemble all his evidence”	Merits characterization of FAC that Court cannot adopt on demurrer

Each of these assertions asks the Court to accept Defendants’ factual conclusions over Plaintiff’s factual allegations. On demurrer, this is impermissible. The Court should disregard each conclusory assertion and analyze the FAC’s well-pleaded facts as true.

TABLE OF AUTHORITIES

California Supreme Court

	Page
Boeken v. Philip Morris USA, Inc. (2010) 48 Cal.4th 788	34

	Page
Blank v. Kirwan (1985) 39 Cal.3d 311	34A
Crowley v. Kattleman (1994) 8 Cal.4th 666	35
Doctors' Co. v. Superior Court (1989) 49 Cal.3d 39	35
Jacob B. v. County of Shasta (2007) 40 Cal.4th 948	35
Kimmel v. Goland (1990) 51 Cal.3d 202	35
Kulchar v. Kulchar (1969) 1 Cal.3d 467	35
Mycogen Corp. v. Monsanto Co. (2002) 28 Cal.4th 888	35
Olivera v. Grace (1942) 19 Cal.2d 570	35
Rusheen v. Cohen (2006) 37 Cal.4th 1048	35
Serrano v. Priest (1971) 5 Cal.3d 584	35
Action Apartment Ass'n v. City of Santa Monica (2007) 41 Cal.4th 1232	35
Westphal v. Westphal (1942) 20 Cal.2d 393	35

California Court of Appeal

	Page
ABF Capital Corp. v. Berglass (2005) 130 Cal.App.4th 825	35
A.J. Fistes Corp. v. GDL Best Contractors, Inc. (2019) 38 Cal.App.5th 677	35
Applied Equipment Corp. v. Litton Saudi Arabia Ltd. (1994) 7 Cal.4th 503	35A

	Page
Assilzadeh v. California Federal Bank (2000) 82 Cal.App.4th 399	35B
Aldrich v. San Fernando Valley Lumber Co. (1985) 170 Cal.App.3d 725	36
Baltins v. James (1995) 36 Cal.App.4th 1193	36
Coffman v. Produce Terminal Cold Storage Co. (2009) 176 Cal.App.4th 1135	36
F.E.V. v. City of Anaheim (2017) 15 Cal.App.5th 462	36
Gallanis-Politis v. Medina (2007) 152 Cal.App.4th 600	36
In re Marriage of Melton (1994) 28 Cal.App.4th 931	36
In re Marriage of Stevenot (1984) 154 Cal.App.3d 1051	36
Kougasian v. TMSL, Inc. (2004) 118 Cal.App.4th 1028	36
Kolar v. Donahue, McIntosh & Hammerton (2006) 145 Cal.App.4th 1532	36
Mattco Forge, Inc. v. Arthur Young & Co. (1992) 5 Cal.App.4th 392	36
Norton v. Hines (1975) 49 Cal.App.3d 917	36
Omega Video v. Superior Court (1983) 146 Cal.App.3d 470	36
Patrick v. Alacer Corp. (2008) 167 Cal.App.4th 995	36A

	Page
Pavicich v. Santucci (2000) 85 Cal.App.4th 382	37
Rico v. Nasser Bros. Realty Co. (1943) 58 Cal.App.2d 878	37
Rochin v. Pat Johnson Manufacturing Co. (1998) 67 Cal.App.4th 1228	37
Shaolian v. Safeco Ins. Co. (1999) 71 Cal.App.4th 268	37
Singh v. Lipworth (2014) 227 Cal.App.4th 813	37
Wouldridge v. Burns (1968) 265 Cal.App.2d 82	37

United States Supreme Court

	Page
United States v. Throckmorton (1878) 98 U.S. 61	37

Statutes

	Page
Code Civ. Proc. § 430.10	37
Code Civ. Proc. § 430.50	37
Code Civ. Proc. § 430.70	37
Code Civ. Proc. § 473(b)	37
Code Civ. Proc. § 904.1	37
Civ. Code § 47(b)	37
Civ. Code § 1573	37A

	Page
Civ. Code § 2338	38
Evid. Code § 452	38

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